

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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CYNTHIA ALLEN,

Plaintiff,

-against-

AMENDED &
SUPPLEMENTAL
COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P.O. MARCY
VELEZ, and P.O. DONALD HOOK individually and
in their official capacity as employees of the New York City Police Department,

Jury Trial Demanded

10-CV-2673 (AKH)

Defendants.
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Cynthia Allen, by her attorneys, the Law Offices of Lisa George, alleges the following upon information and belief as her Complaint.

Nature of the Action

1. This civil rights action arises from the unlawful search and seizure, false imprisonment and harassment of Cynthia Allen that occurred on or about March 26, 2009 and during the approximately two year period from in or about April 2007 through March 26, 2009. Plaintiff seeks declaratory relief pursuant to 28 U.S.C. Sec. 2201, and, under 42 U.S.C. Sec. 1983, compensatory and punitive damages for violation of her civil rights.

Jurisdiction and Venue

2. This action arises under the United States Constitution and 42 U.S.C. Sec 1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. Sec 1331 and 1343(3). Plaintiff requests that this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts as do Plaintiff's federal claims.

3. Under 28 U.S.C. Sec. 1391(b) and (c), venue is proper in the Southern District of New York as defendant City of New York resides in that District.

Parties

4. Plaintiff Cynthia Allen is a citizen of the United States residing in the State and City of New York County of Kings. She was unemployed at the time of the incident. She worked previously as a flagger for a construction company. Ms. Allen has no criminal record.

5. Defendant City of New York is a Municipal Corporation within New York State. Pursuant to Sec. 431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department of agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendant P.O. Marcy Velez ("defendant Velez") was at all time relevant a duly appointed and acting employee of the New York City Police Department assigned to the 26th Precinct, New York, New York.

7. Defendant P.O. Donald Hook ("defendant Hook") was at all relevant times a duly appointed and acting employee of the New York City Police department assigned to the 26th Police Precinct, New York, New York.

8. At all times relevant, defendants Velez and Hook (the "individual defendants") were acting under color of state law.

9. The individual defendants involved in the incident underlying this lawsuit were at all times relevant agents, servants and employees acting within the scope of their employment by defendant City of New York.

Notice of Claim

10. On or about June 24, 2009 and within 90 days of the events giving rise to the claims, the Plaintiff filed a Notice of Claim upon defendant City of New York by delivering copies thereof to the person designated by law a person to whom such claims may be served.

11. The Notice of Claim was in writing, sworn to by the Plaintiff, and contained the name and post office address of the Plaintiff.

12. The Notice of Claim set out the nature of the claim, the time when, the place where and manner by which the claim arose, and the damages and injuries claimed to have been sustained.

13. The New York City Comptroller's Office assigned the complaint number 2009PI015754.

14. The City of New York has neglected and failed to adjust the claims within the statutory time period.

15. This action was commenced within one year and ninety days after the happening of the event upon which the claims are based.

Facts Underlying
Plaintiff's Claims for Relief

16. On or about March 26, 2009 at approximately 9:30pm at 122nd Street and Morningside Avenue, New York, New York, the individual defendants without cause or justification approached and verbally and physically threatened, harassed, assaulted and battered her.

17. On or about the night of March 26, 2009 the individual defendants stopped the patrol car they were driving and approached Plaintiff as she stood talking to a male friend and smoking a cigarette.

18. Initially upon stopping the individual defendants, defendant Velez in particular, began to say inappropriate personal comments of a sexual (explicit) nature to Plaintiff, "You know I want to be with you" or words to that effect.

19. The individual defendants wore police uniforms and traveled in a marked police vehicle, bearing among other things, the mission statement of the New York City Police Department, Courtesy, Protect, Respect (CPR).

20. The individual defendants separated Plaintiff from her friend by a few feet and the individual defendants each, without consent of either Plaintiff or her male friend, began to "frisk" Plaintiff and her friend.

21. While defendant Hook was "frisking" Plaintiff he began screaming at her, cursing at her, calling her, among other things, a "dirty bitch" and demanding to know if she had drugs and/or needles on her.

22. The individual defendants threatened to arrest Plaintiff's male friend and said, among other things, "mind your fu__ing business" or words to that effect when he objected to the frisking of Plaintiff and his person.

23. When Plaintiff objected to being frisked at all and, in particular, by a male officer, and indicated that they had no right to touch her, defendant Hook grabbed Plaintiff by her throat and began choking Plaintiff.

24. Defendant Velez, despite having a reasonable opportunity to do so, took no action to prevent, end or report the unlawful use of force, bodily search, detention and harassment of Ms. Allen. Rather defendant Velez initiated, encouraged and incited the unlawful use of force, bodily search, detention and harassment of Ms. Allen.

25. The individual defendants neither arrested nor issued a summons to either Plaintiff or her male friend.

26. Scared and panicked about what just happened, battered and bruised, and believing genuine police officers would not act in such a manner initially went home to seek sanctuary.

27. Plaintiff went to the hospital the next day to be examined.

28. Plaintiff was stopped, searched, screamed at, detained against her will, and physically battered and bruised, despite the fact that she had not committed any crime, the defendants had no reasonable basis to believe she had committed any crime, and the individual defendants were not defending themselves or any other person.

29. As a result of the foregoing Ms. Allen suffered physical injury including, but not limited to, her neck, throat, and eyes.

30. As a result of the foregoing, the Plaintiff suffered emotional trauma, fright, physical pain and suffering, loss of liberty and other constitutional rights, among other injuries. She suffered the debasement of being bodily searched, especially by a male officer who had engaged in verbally lewd conduct towards her, assaulted, and publicly attacked while innocently on street near her home.

31. At all times relevant, bodily searching, detaining, and using force by assaulting and battering Plaintiff, the individual defendants acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical and mental well-being.

FIRST CLAIM FOR RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE SEARCHES AND
SEIZURES UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION

32. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

33. By the actions described above, the individual defendants, or some of them, deprived the Plaintiff of rights secured by the Constitution and laws of the United States, including but not limited to, her right to be free and secure in her person and her right to be free from arrest, seizure or search, except on probable cause or pursuant to a warrant.

34. As a consequence thereof, Cynthia Allen has been injured.

SECOND CLAIM FROM RELIEF FOR FALSE IMPRISONMENT

35. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

36. By reason of the foregoing, Plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely imprisoned.

37. As a consequence thereof, Cynthia Allen has been injured.

THIRD CLAIM FROM RELIEF FOR
VIOLATING PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE FORCE
UNDER THE FOURTH AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION

38. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

39. By the actions described above, the individual defendants, or some of them deprived Plaintiff of her rights secured by the Constitution and laws of the United States, including, but not limited to, her right to be free from excessive and unreasonable force.

40. As a consequence thereof, Cynthia Allen has been injured.

FOURTH CLAIM FOR RELIEF FOR ASSAULT

41. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

42. By the actions described above, Plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

43. As a consequence thereof, Cynthia Allen has been injured.

FIFTH CLAIM FOR RELIEF FOR BATTERY

44. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

45. By the actions described above, Plaintiff was intentionally touched in a harmful and offensive manner.

46. As a consequence thereof, Cynthia Allen has been injured.

SIXTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

47. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

48. The individual defendants, and search of them, failed to intervene to prevent, end, or truthfully report the unlawful search, use of force, and detainment of the Plaintiff, despite having a reasonable opportunity to do so.

49. As a consequence thereof, Cynthia Allen has been injured.

SEVENTH CLAIM FOR RELIEF FOR NEGLIGENCE

50. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

51. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to assign, train, supervise or discipline its law enforcement personnel, including assigning, training, supervising or disciplining individual Police personnel who unlawfully search, arrest, detain, use force, or who makes false allegations.

52. The defendant City of New York's failure properly to assign, train, supervise or discipline its Police personnel, including the Police personnel involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional searches, detainments, arrests, uses of force, and lodging of false allegations and allowed the defendants to believe that they could with impunity search, assault, batter, and detain the Plaintiff on the basis of their status as police officers and without any basis or belief that a crime had been or was being committed by Plaintiff in an unlawful effort to intimidate, harass, assault and batter the Plaintiff.

53. By reason of the foregoing, the defendant City of New York through its agents, servants, and employees, failed and refused to use such care in the performance of its duties as a reasonably prudent law enforcement provider would have used under similar circumstances.

54. As a consequence thereof, Cynthia Allen has been injured.

EIGHTH CLAIM FOR RELIEF FOR HARASSMENT

55. Plaintiff repeats the allegations of paragraphs 1-31 as though fully stated herein.

56. Starting in or about April 2007 through March 26, 2009 individual defendant P.O. Marcy Velez subjected Plaintiff Ms. Allen to unwanted verbal abuse and sexual advances.

57. On at least two occasions from April 2007 through March 26, 2009 individual defendant P.O. Marcy Velez made unwanted contacted with Plaintiff Cynthia Allen by making lewd comments regarding her body and character and threatening that he wanted to engage in certain acts with her.

NINTH CLAIM FOR RELIEF FOR RETALIATION AND MALICIOUS PROSECUTION

58. By the actions described above, the individual defendants, or some of them, deprived the Plaintiff of rights secured by the Constitution and laws of the United States, including but not

limited to, her right to be free and secure in her person and her right to be free from the assault and harassment of her person.

59. As a consequence thereof, Plaintiff Cynthia Allen has been injured.

60. In or around May 2009 Plaintiff made a formal complaint to the Civilian Complaint Review Board ("CCRB") regarding the defendants' use of excessive force against her.

61. As part of the same complaint to CCRB, Plaintiff also informed CCRB of defendant Velez's harassment of her, a separate claim in addition to excessive force and violation of her constitutional rights.

62. On information and belief, in or around June 2009 CCRB communicated the information regarding the harassment of Plaintiff by defendant Velez to an Internal Affairs Unit of defendants NYPD for a separate investigation.

63. On information and belief, in or around June 2009 CCRB commenced its own investigation of Plaintiff's claim that the individual defendants used excessive force against her and violated her constitutional rights.

64. On information and belief, defendants NYPD and the City of New York and defendants' Internal Affairs Unit failed to discharge its mandate to investigate Plaintiff's separate claim that defendant Velez harassed her.

65. On information and belief, CCRB did not determine that Plaintiff's claims of assault, unlawful imprisonment and excessive force were unfounded.

66. On information and belief, CCRB's investigation did not "clear" either defendant Velez, defendant Hook or the other defendants of Plaintiff's claims of assault, excessive force, unlawful imprisonment and failure to intervene to stop the violation of Plaintiff's constitutional rights.

67. On information and belief, CCRB informed defendants of the conclusion of the investigation and the results within at least 30 days thereof.

68. On information and belief, defendants NYPD and the City of New York failed to send defendants Velez and Hook for training or retraining regarding the discharge of duties to the public generally or Plaintiff specifically.

69. On information and belief, within approximately 60 to 90 days of CCRB communicating the conclusion and results of its investigation to defendants, defendants NYPD and the City of New York placed defendant Velez in a supervisory and/or training position.

70. On information and belief, defendants NYPD and the City of New York directed defendant Velez to supervise and/or train a policeman with less time on the job than defendant Velez.

71. While in that supervisory and/or training position defendant Velez harassed, threatened and intimidated Plaintiff by stopping her on the street and accusing her of an offense she did not commit and/or selectively enforcing an outdated or invalid statute.

72. While in that supervisory and/or training position, defendant Velez harassed, threatened and intimidated Plaintiff by directing a less experienced policeman to file an instrument that contained false information against Plaintiff. Said instrument containing false information was found to be insufficient by a court of law and that warranted dismissal.

73. While defendant Velez was in that supervisory and/or training position that defendants NYPD and the City of New York had placed him in, defendants sought to maliciously prosecute and engage in abuse of process against Plaintiff.

74. Defendants acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical and mental well-being.

75. Defendants took said actions and engaged in the conduct described above in retaliation against Plaintiff for her complaint against defendants for excessive force, unlawful imprisonment, assault, and violation of her constitutional rights.

76. As a direct and proximate result of defendants' intentional, wanton and willful, grossly negligent and negligent acts and omissions, reckless disregard and deliberate indifference, Plaintiff was injured.

Request for Relief

WHEREFORE, Plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. A declaration that plaintiff had her right to be free from unreasonable searches and seizures under the United States Constitution violated.

2. A declaration that plaintiff had her right to be free from unreasonable force under the United States Constitution violated.

(B) Compensatory damages in an amount to be fixed at trial;

(C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;

(D) An award to plaintiff of the costs and disbursements herein;

(E) An award of attorney's fees under 42 U.S.C. Sec. 1988;

(F) Such other and further relief as this Court may deem just and proper.

Dated: January 03, 2011
Brooklyn, New York

Law Offices of Lisa George
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